

		Further, Ford's argument under the economic loss rule (the "ELR") fails here. <i>Rattagan</i> did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 does address such claims in this context. After <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. <i>Dhital</i> thus controls here. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (<i>Id.</i> at 843.) The Demurrer, to the extent it is based on the ELR, thus fails here. Where the Demurrer has been SUSTAINED, plaintiffs are granted 14 days leave to amend. <i>Ford shall give notice.</i>
11.	Richards v. General Motors, LLC 25-1469068	Before the Court is the Demurrer filed by Defendant General Motors, LLC ("GM") on 2/19/26, directed to the First Amended Complaint which was belatedly filed by Plaintiffs Brad Richards and Ruth Preston ("Plaintiffs") on 4/16/26. The Demurrer is OVERRULED. The Demurrer is directed solely to the Fifth Cause of Action for Fraudulent Inducement- Concealment. But the FAC now adequately asserts that Plaintiffs purchased the subject vehicle from GM's authorized retail dealership. (FAC ¶ 9.) That is sufficient to allege a relationship requiring GM to disclose known defects. (See <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844.) The allegations as to the alleged defect in their vehicle (FAC ¶¶ 13, 14) adequately comport with their allegations as to the known "Transmission Defect" in these vehicles, under <i>Dhital</i>. The Demurrer is therefore OVERRULED. GM is to file its Answer within 10 days. <i>Plaintiff is to give notice of this ruling.</i>
12.	Waypoint Aviation Services v. Transcontinental Air LLC 25-1495879	(Moot-FAC filed)
13.	Soteropoulos v. FCA US LLC 25-1492568	(Moot-FAC filed)
14.	Glickman v. Krolikowski 19-1049771	Before the Court are the Demurrer and Motion to Strike filed on 12/15/25 by Defendants Charles Krolikowski and Newmeyer & Dillion LLP ("Defendants"), directed to the Eighth Cause of Action in the Fourth Amended Complaint (the "Fourth AC") filed on 11/13/25 by Plaintiff William Glickman ("Plaintiff"). The Demurrer is OVERRULED. The Demurrer asserts that the claim under C.C.P. § 496 fails to state sufficient facts to support the cause of action. However, although not all commercial or consumer disputes alleging that a defendant obtained money or property through fraud, misrepresentation, or breach of a contractual promise will suffice, a claim is stated where facts are also alleged to infer careful planning and deliberation reflecting the requisite criminal intent. (<i>Siry Investment</i>,